

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SUMMONS

VICTOR DELORBES AND DIONELKY MUNOZ,

Index No.:

Plaintiffs,

The Basis of Venue is:
Location of Incident

-against-

THE CITY OF NEW YORK, POLICE OFFICER ERICK ESTRADA, Tax No. 967497, SERGEANT WAYLON FRADERA, Tax No. 930176, POLICE OFFICER BRIAN LIMA, Tax No. 967580, SERGEANT CESAR POLANCO, Tax No. 929450, POLICE OFFICER OTIS CASEY, Tax No. 918657, POLICE OFFICER EMMANUEL JEAN, Tax No. 968516, POLICE OFFICER SAUL RODRIGUEZCARRASCO, Tax No. 967667, and POLICE OFFICERS JOHN DOES #s 1-10 (names and numbers of whom are unknown at present),

Plaintiff designates New York County as the place of trial.

Defendants.

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To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 4, 2024

Yours, etc.

David M. Hazan

JACOBS & HAZAN, PLLC

DAVID M. HAZAN, ESQ.

Attorney for Plaintiff

30 Vesey Street, 4th Floor

New York, New York 10007

(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER ERICK ESTRADA, Tax No. 967497, 34th Precinct
SERGEANT WAYLON FRADERA, Tax No. 930176, Housing Bureau
POLICE OFFICER BRIAN LIMA, Tax No. 967580, 34th Precinct
SERGEANT CESAR POLANCO, Tax No. 929450,
POLICE OFFICER OTIS CASEY, Tax No. 918657,
POLICE OFFICER EMMANUEL JEAN, Tax No. 968516, 34th Precinct
POLICE OFFICER SAUL RODRIGUEZCARRASCO, Tax No. 967667, 34th Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

VICTOR DELORBES AND DIONELKY MUNOZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER ERICK ESTRADA, Tax No. 967497, SERGEANT WAYLON FRADERA, Tax No. 930176, POLICE OFFICER BRIAN LIMA, Tax No. 967580, SERGEANT CESAR POLANCO, Tax No. 929450, POLICE OFFICER OTIS CASEY, Tax No. 918657, POLICE OFFICER EMMANUEL JEAN, Tax No. 968516, POLICE OFFICER SAUL RODRIGUEZCARRASCO, Tax No. 967667, and POLICE OFFICERS JOHN DOES #s 1-10 (names and numbers of whom are unknown at present),

Defendants.

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Plaintiffs VICTOR DELORBES AND DIONELKY MUNOZ, by their attorneys, Jacobs & Hazan, PLLC, as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on January 4, 2021, at approximately 12:01 am plaintiffs were lawfully present with their friends in the vicinity of Thayer Street and Nagle Avenue, New York, New York, when the individually named police officer defendant approached plaintiffs and their friends and unlawfully stopped, questioned, frisked, searched, unlawfully handcuffed, and falsely arrested plaintiffs, without probable cause or legal justification. At no time relevant herein did plaintiffs violate the law or commit a crime, nor did the officers possess objective facts to establish probable cause to believe they committed a crime. Upon information and belief, on the date of the underlying incident the defendants harassed, falsely arrested, and maliciously prosecuted plaintiffs because the defendants were retaliating against plaintiff Dionelky Munoz and his friends after the officers learned that plaintiff Dionelky Munoz was dating the ex-girlfriend of the officers' colleague, Police Officer

Pedro Figueroa, Tax No. 950409 who is assigned to the 34th Precinct and often works alongside defendants. Defendants harbored resentment and ill will toward their colleague's ex-girlfriend because she made complaints against her ex-boyfriend, Police Officer Pedro Figueroa, which resulted in Police Officer Figueroa getting severely disciplined by the NYPD for assaulting his ex-girlfriend. The defendant officers retaliated against plaintiff Dionelky Munoz and his friend plaintiff Victor Delorbe because of their connection to the woman who they believe unfairly damages their fellow officer. Specifically, the defendants fabricated allegations against plaintiffs that they damaged the glass front door of a Chase Bank that was located a few blocks away from where the defendants stopped plaintiffs. At no time relevant herein did plaintiffs go anywhere near the Chase Bank on the date they were accused of damaging the front door of the bank. In fact, surveillance video from the Chase Bank established that neither plaintiff was at the bank that day and they did not damage the door of the bank. The officers unlawfully stopped, questioned, frisked, stopped, and searched plaintiffs, without reasonable suspicion, probable cause or any legal basis. The Defendant Police Officers did not recover any illegal drugs, weapons, or contraband from plaintiffs' possession, custody or control. The officers unlawfully handcuffed plaintiffs and falsely arrested them, without probable cause or legal justification, and transported them to the 34th Precinct against their will, whereat they were unlawfully searched, interrogated, fingerprinted, photographed, and detained in a filthy holding cell for many hours. The officers provided the New York County District Attorney's Office with false, misleading and incomplete evidence to support their purported basis for arresting plaintiffs and charging them with crimes. Approximately 24 hours after plaintiffs were arrested, the defendants issued Desk Appearance Tickets to plaintiffs and released them from custody at the 34th Precinct. Desk Appearance Ticket instructing him to appear in Criminal Court. The false allegations made by the officers formed the basis for the crimes he was charged with committing at arraignment, without probable cause. Plaintiff Dionelky Munoz was arraigned in New York County Criminal Court on June 11, 2021 and Plaintiff Victor Delorbe was arraigned in New York County Criminal Court on April 9, 2021 and they were charged with crimes they did not commit, including but not limited to Criminal Mischief in the Fourth Degree (PL 145.00(1)). At arraignment, plaintiffs were released from custody on their own recognizance. Plaintiff Dionelky Munoz returned to Court on several occasions before all charges were dismissed and sealed in their entirety on August 4, 2021, and plaintiff Victor Delorbe returned to Court on several occasions before all charges were dismissed and sealed in their entirety on November 30, 2021. Those officers that did not physically touch plaintiffs but observed their fellow officers violating plaintiffs' rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiffs' rights under New York State law and the United States Constitution are liable to plaintiffs for their failure to intervene. Plaintiffs were deprived of their Constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, and denied plaintiffs the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. Plaintiff VICTOR DELORBE is a resident of the state of New York.
3. Plaintiff DIONELKY MUNOZ is a resident of the state of New York.

4. Defendant POLICE OFFICER ERICK ESTRADA, Tax No. 967497, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. Defendant POLICE OFFICER ERICK ESTRADA, Tax No. 967497, was at all times relevant herein, assigned to the 34th Precinct.

6. Defendant POLICE OFFICER ERICK ESTRADA, Tax No. 967497, is being sued in his individual and official capacity.

7. Defendant SERGEANT WAYLON FRADERA, Tax No. 930176, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. Defendant SERGEANT WAYLON FRADERA, Tax No. 930176, was at all times relevant herein, assigned to the 34th Precinct and is presently assigned to the Housing Bureau.

9. Defendant SERGEANT WAYLON FRADERA, Tax No. 930176, is being sued in his individual and official capacity.

10. Defendant POLICE OFFICER BRIAN LIMA, Tax No. 967580, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

11. Defendant POLICE OFFICER BRIAN LIMA, Tax No. 967580, was at all times relevant herein, assigned to the 34th Precinct.

12. Defendant POLICE OFFICER BRIAN LIMA, Tax No. 967580, is being sued in his individual and official capacity.

13. Defendant SERGEANT CESAR POLANCO, Tax No. 929450, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

14. Defendant SERGEANT CESAR POLANCO, Tax No. 929450, was at all times relevant herein, assigned to the 34th Precinct.

15. Defendant SERGEANT CESAR POLANCO, Tax No. 929450, is being sued in her individual and official capacity.

16. Defendant POLICE OFFICER OTIS CASEY, Tax No. 918657, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

17. Defendant POLICE OFFICER OTIS CASEY, Tax No. 918657, was at all times relevant herein, assigned to the 34th Precinct.

18. Defendant POLICE OFFICER OTIS CASEY, Tax No. 918657, is being sued in his individual and official capacity.

19. Defendant POLICE OFFICER EMMANUEL JEAN, Tax No. 968516, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

20. Defendant POLICE OFFICER EMMANUEL JEAN, Tax No. 968516, was at all times relevant herein, assigned to the 34th Precinct.

21. Defendant POLICE OFFICER EMMANUEL JEAN, Tax No. 968516, is being sued in her individual and official capacity.

22. Defendant POLICE OFFICER SAUL RODRIGUEZCARRASCO, Tax No. 967667, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

23. Defendant POLICE OFFICER SAUL RODRIGUEZCARRASCO, Tax No. 967667, was at all times relevant herein, assigned to the Brooklyn North Warrants Squad.

24. Defendant POLICE OFFICER SAUL RODRIGUEZCARRASCO, Tax No. 967667, is being sued in her individual and official capacity.

25. Defendant New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

26. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

27. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

28. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

29. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

30. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

31. On January 4, 2021, at approximately 12:01 am plaintiffs were lawfully present with their friends in the vicinity of Thayer Street and Nagle Avenue, New York, New York, when the individually named police officer defendant approached plaintiffs and their friends and unlawfully stopped, questioned, frisked, searched, unlawfully handcuffed, and falsely arrested plaintiffs, without probable cause or legal justification.

32. At no time relevant herein did plaintiffs violate the law or commit a crime, nor did the officers possess objective facts to establish probable cause to believe they committed a crime.

33. Upon information and belief, on the date of the underlying incident the defendants harassed, falsely arrested, and maliciously prosecuted plaintiffs because the defendants were retaliating against plaintiff Dionelky Munoz and his friends after the officers learned that plaintiff Dionelky Munoz was dating the ex-girlfriend of the officers' colleague, Police Officer Pedro Figueroa, Tax No. 950409 who is assigned to the 34th Precinct and often works alongside defendants.

34. Defendants harbored resentment and ill will toward their colleague's ex-girlfriend because she made complaints against her ex-boyfriend, Police Officer Pedro Figueroa, which resulted in Police Officer Figueroa getting severely disciplined by the NYPD for assaulting his ex- girlfriend.

35. The defendant officers retaliated against plaintiff Dionelky Munoz and his friend plaintiff Victor Delorbe because of their connection to the woman who they believe unfairly damages their fellow officer.

36. Specifically, the defendants fabricated allegations against plaintiffs that they damaged the glass front door of a Chase Bank that was located a few blocks away from where the defendants stopped plaintiffs.

37. At no time relevant herein did plaintiffs go anywhere near the Chase Bank on the date they were accused of damaging the front door of the bank.

38. In fact, surveillance video from the Chase Bank established that neither plaintiff was at the bank that day and they did not damage the door of the bank.

39. The officers unlawfully stopped, questioned, frisked, stopped, and searched plaintiffs, without reasonable suspicion, probable cause or any legal basis.

40. The Defendant Police Officers did not recover any illegal drugs, weapons, or contraband from plaintiffs' possession, custody or control.

41. The officers unlawfully handcuffed plaintiffs and falsely arrested them, without probable cause or legal justification, and transported them to the 34th Precinct against their will, whereat they were unlawfully searched, interrogated, fingerprinted, photographed, and detained in a filthy holding cell for many hours.

42. The officers provided the New York County District Attorney's Office with false, misleading and incomplete evidence to support their purported basis for arresting plaintiffs and charging them with crimes.

43. Approximately 24 hours after plaintiffs were arrested, the defendants issued Desk Appearance Tickets to plaintiffs and released them from custody at the 34th Precinct.

44. The false allegations made by the officers formed the basis for the crimes he was charged with committing at arraignment, without probable cause.

45. Plaintiff Dionelky Munoz was arraigned in New York County Criminal Court on June 11, 2021, and Plaintiff Victor Delorbe was arraigned in New York County Criminal Court on April 9, 2021, and they were charged with crimes they did not commit, including but not limited to Criminal Mischief in the Fourth Degree (PL 145.00(1)).

46. At arraignment, plaintiffs were released from custody on their own recognizance.

47. Plaintiff Dionelky Munoz returned to Court on several occasions before all charges were dismissed and sealed in their entirety on August 4, 2021, and plaintiff Victor Delorbe returned to Court on several occasions before all charges were dismissed and sealed in their entirety on November 30, 2021.

48. Those officers that did not physically touch plaintiffs but observed their fellow officers violating plaintiffs' rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiffs' rights under New York State law and the United States Constitution are liable to plaintiffs for their failure to intervene.

49. Plaintiffs were deprived of their Constitutional and common law rights when the individual defendants unlawfully frisked, searched, interrogated, falsely arrested, maliciously prosecuted, and denied plaintiffs the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York

50. At no time relevant herein did plaintiffs commit a crime or violate the law, nor did the officers possess objective facts to establish probable cause to believe plaintiffs committed a crime or violated the law.

51. Defendants provided the New York County District Attorney's Office with false, misleading, and incomplete evidence and allegations about the evidence they allegedly recovered that purportedly formed defendants' basis for arresting plaintiff and charging him with crimes.

52. At no time relevant herein did plaintiffs commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner.

53. Those officers that did not physically touch plaintiffs but observed their fellow officers violating plaintiffs' rights under New York State law and the Constitution of the United States but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

54. Plaintiffs were deprived of their Constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, interrogated, falsely arrested, maliciously prosecuted, and denied plaintiffs the right to due process/ right to a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

55. Defendants falsely arrested and maliciously prosecuted plaintiffs, without probable cause or legal justification.

56. Defendants violated plaintiffs' right to due process when they provided the District Attorney's Office with false, misleading, and incomplete evidence which formed the basis for initiating the criminal prosecution against plaintiff.

57. At no time relevant herein did plaintiffs commit a crime or violate the law, nor did defendants possess objective facts that would lead a reasonable police officer to believe he possessed probable cause to believe plaintiff committed a crime or violated the law.

58. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully stopped, searched, questioned, frisked, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

59. The individually named defendant police officers have significant histories of having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from

continuing to engage in such misconduct because the NYPD does not sufficiently investigate allegations that a police officer violated the Constitutional Rights of an individual and did not sufficient punish defendants for the misconduct they previously engaged in.

60. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

61. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

62. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiffs' injuries because defendants knew that there would not be any consequences for violating plaintiffs' rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

63. Given defendants' histories of allegations of violating the Constitutional Rights of members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiffs' arrests in this case, and plaintiffs' rights may not have been violated if the defendant City of New York had properly investigated and disciplined defendants and other officers throughout the NYPD prior to the date of plaintiffs' arrest in this case.

64. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

65. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth Amendment and Fourteenth Amendment Rights

66. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiffs to be unlawfully stopped, searched, frisked, questioned, seized, denied due process, falsely arrested and falsely imprisoned, and maliciously prosecuted, without probable cause, in violation of plaintiffs' right to be free from an unreasonable seizure under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

68. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

70. As a direct and proximate result of such acts, defendants deprived plaintiffs of her rights under the laws of the State of New York and the United States Constitution.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

73. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The illegal entry into the apartment, approach, pursuit, stop and search inside plaintiffs' pockets and underneath his clothing, employed by defendants herein, and terminated plaintiffs' freedom of movement through means intentionally applied.

75. Defendants lacked probable cause to search plaintiffs.

76. As a direct and proximate result of such acts, defendants deprived plaintiffs of their rights under the laws of the State of New York.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

78. As a result of the aforementioned conduct of defendants, plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

79. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

81. Defendants commenced and continued criminal proceedings against plaintiffs.

82. There was actual malice and an absence of probable cause for the criminal proceedings against plaintiffs and for each of the charges for which they were prosecuted.

83. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned date.

84. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth

Amendment Rights

Denial of Due Process/ Right to a Fair Trial

86. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered 1 through 85 with the same force and effect as if fully set forth herein.

87. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

88. Defendants filled out false and misleading police reports and a summons and forwarded them to the New York County Criminal Court.

89. In withholding/creating false evidence against plaintiffs, and in providing/withholding information with respect thereto, defendants violated plaintiffs' constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

90. As a result of the foregoing, plaintiffs sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Failure to Intervene

92. The plaintiffs repeat reiterate and reallege each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. Defendants had an affirmative duty to intervene on behalf of plaintiffs whose constitutional rights were being violated in their presence by other officers.

94. Defendants failed to intervene to prevent the unlawful conduct described herein.

95. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

97. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 96 with the same force and effect as if more fully set forth at length herein.

98. Plaintiffs were unlawfully searched, interrogated, frisked, falsely arrested, and denied plaintiff then right to due process without an objective factual legal basis to seize, arrest and prosecute plaintiffs pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

99. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

100. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

101. Defendant City of New York is liable to plaintiffs for the damages they suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiffs because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

102. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

103. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiffs' injuries because the officers knew there would not be any consequences for violating plaintiffs' rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

104. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a

reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

105. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

106. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

107. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiffs and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiffs have been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

108. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

109. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs VICTOR DELORBES AND DIONELKY MUNOZ demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 4, 2024

By: David M Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiffs
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiffs is because plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
January 4, 2024

David M Hazan

DAVID M. HAZAN